



CHAPTER 55.

An Act to provide for the registration of still-births in Scotland. [29th July 1938.] A.D. 1938. —

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subject to such exceptions as may be prescribed, the provisions of the Registration Acts shall apply to still-births in like manner as they apply to births of children born alive, with the substitution of references to the Schedule to this Act for references to Schedule A to the Act of 1854. Registration of still-births.

(2) Every person upon giving information regarding a still-birth shall—

- (a) deliver to the registrar a certificate in the prescribed form stating that the child was not born alive, and, where possible, the cause or probable cause of death, which certificate shall, if a registered medical practitioner was in attendance at the birth or has examined the body of the child, be signed by him, and otherwise shall be signed by a certified midwife who was in attendance or examined the body; or

(b) make a declaration in the prescribed form to the effect that no registered medical practitioner or certified midwife was present at the birth or has examined the body, or that his or her certificate cannot be obtained and that the child was not born alive.

(3) The registrar upon registering a still-birth shall, if so required by the person giving information relating to the still-birth, give to such person, without fee, a certificate under his hand in the prescribed form that he has registered the still-birth.

(4) The keeper or other person having charge of a burial ground in which the body of a still-born child shall have been buried shall, unless a certificate given under the last foregoing subsection in respect of the still-birth has been delivered to him, give, within three days after such burial, notice thereof in the prescribed form to the registrar of the district in which the still-birth took place.

(5) The provisions of section seventy-four of the Act of 1854 relating to the alteration of schedules to that Act annexed shall apply to the alteration of the Schedule to this Act.

2. The provisions of section fifteen of the Public Health (Scotland) Act, 1897, so far as requiring registrars to furnish to local authorities periodical returns of births and deaths, shall apply to still-births as they apply to deaths.

3. Any person who contravenes or fails to comply with any of the provisions of this Act shall be liable on conviction by a court of summary jurisdiction to a fine not exceeding twenty shillings.

4. In this Act, unless the context otherwise requires—

“Act of 1854” means the Registration of Births, Deaths and Marriages (Scotland) Act, 1854;

“burial ground” includes the places of burial described in section forty-four of the Act of 1854;

- “certified midwife” means a woman certified under the Midwives (Scotland) Act, 1915; A.D. 1938.
- “prescribed” means prescribed by regulations made under section six of the Act of 1854; 5 & 6 Geo. 5. c. 91.
- “Registration Acts” means the Registration of Births, Deaths and Marriages (Scotland) Acts, 1854 to 1934;
- “still-born” and “still-birth” shall apply to any child which has issued forth from its mother after the twenty-eighth week of pregnancy and which did not at any time after being completely expelled from its mother breathe or show any other signs of life.

5.—(1) This Act may be cited as the Registration of Still-Births (Scotland) Act, 1938, and shall be construed as one with the Registration of Births, Deaths and Marriages (Scotland) Acts, 1854 to 1934, and this Act and those Acts may be cited together as the Registration of Births, Deaths and Marriages (Scotland) Acts, 1854 to 1938. Short title, commencement and extent.

(2) This Act shall be included among the Acts referred to in paragraph (b) of section six of the Population (Statistics) Act, 1938.

1 & 2 Geo. 6.
c. 12.

(3) This Act shall come into operation on the first day of January nineteen hundred and thirty-nine.

(4) This Act shall extend to Scotland only.

SCHEDULE.

A.D. 1938.

FORM OF REGISTER OF STILL-BIRTHS.

No.	When and where born.	Sex.	Name, Surname and Rank or Profession of Father. Name and Maiden Surname of Mother. Date and Place of Marriage.	Signature and Qualification of Informant, and Residence if out of the House in which the Still-Birth occurred.	Nature of Evidence upon which registered as Still-born.	Cause or Probable Cause of Death, if known.	When and where Registered and Signature of Registrar.
	(1)	(2)	(3)	(4)	(5)	(6)	(7)

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Registration of Still-Births [1 & 2 Geo. 6.]
(Scotland) Act, 1938.